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England.

conquell. William earl of Poièters and duke of Gui- ene had refoled upon an expedition to the holy land; ands for this purpose, had pay himself at the head of a whilmende, according according to formal domains, of 60,000 borfe, and a much greater number of foot. Lale Roberts for Normandy, he offered to mortgage his dominations for money influence to conduct his mindt titute into Afia. The king accepted his offer; and had prepared a fleets and army to take profiofion of the defendants, when an unfortune excellent put an end to his projects and his life. He was engaged in hunting, the feel amulement, and indeed the principal occupation, of private in those rule times. Walter Tyrer), a French gentleman remarkable for his fillfll no archway, attended him in this recreation, of which the new foreld was the fence. William had different ed after a chesy and Tyrre), impident to flow his dexterity, let by an arrow at a flag which fudduly litrated before him. The arrow glanced from a tree, and finds the king to the here. He initially fell down dead; and Tyrrel, terrified at the accident, clapi figure to his horse, halted to the tea-thows, and embarked for France, where he joined the attitude that was fetting out from that country. This happened on the art of Arydiel, 1:100, after the king had reignent 14 years, and lived about 30. His heart was found in the woods by the country-people, and buried without ceremony at Winchester.

After the death of William, the crown of right de- volled to Robert his elett brother; for William had no legitimate children. But even Robert had formerly led by the indulences, but was again deprived of by his abience at the holy war. Prince Henry was in the word with William Rufaa as the time the latter was killed. He or former heard the important ones, than he hurried to Winchefter, and focused the royal trava-fore. William de Betettall, keeper of the restans, arrived at the famu infants and itures, and reported his pretentions telling him, that the treature belonged to his elder brother, who was now his foreign, and for whom he was determined to keep it. But Henry, leaving his fears, threatened him with infant death if he dared to diifobey him; and others of the late kings retirons who were my moment to Winchefter, joining the prices party, he was obliged to disifi. Henry left no time in fully accomplishing his purpole. Ja lels than three days he gave his father drowned King England, by Maurice Bibing of London. Precise profioflon up-plied every deficiency of title; and no one dared to ap- piece in defence of the labor partner.

9H His charter in favour of the people.

The beginning of King Henry's regim promised to be favorable to the English liberty; owing chiefly to his fear of his brother. To constitute the affections of his objetsk, he paffed a charity embalted to remove many of the grievous oppréffions which had been completed during the reign of his father and brother. He promised, that, at the death of any ab-bot or bihhop, he never would farze the revenant of the fee or abby during the vacation, but would leave the whole to be repayed by the fuscifor; and that would never be to form any eectifical benefits, or difpole of it for money. To the laiy he promised, thas, up- on the death of

any evil, bron, or military tenant, his her fought his admired to the profiofion of his affairs on paying a jult and lawful relief; without being ex-

pofed to thofe enormous exactions which had been formerly required. He remitted the wardship of minors and allowed guardians to be appointed, who should be adwarefully, the truth. He promised not to difpole of any heirrels in marriage but by advice of all the barons; and if any banin intended to give his daughter, silver, minor, or kidnomas, in marriage, it should only be necefitary for him to confuls the king, who promised to take on money for his content, nor ever to seife primiffion, unlike the person to whom it was propounded to marry her fhoould happen to be his enemy. He granted his barons and military tenants the power of begotating by will their money over per- fanal elates; and if they neglected to make a will, he promised that their hero forced to them. He renounced the right of imposing monogerage, and of le- ying races at yielding, on the farm which the barons kept in their own hands. He made fome general pro- fiums of modernizing lines, I offered a portion for all offices; and remitted all delux due to the crown. He alfo required, that the vafial of the barons should enjoy the farm privileges which he granted his own horses and he promised a general confirmation and observance of the _lavsy of_ king _Edward_ . To give "See Enda greater authenticity to the classifications, a copy of the Syllem, charter are logged in form ababy of each country.

King Henry, farther to increase his popularity, de- graded and committed to prinfan Kalpa Phambul bihop of Dunban who had been the chief instrument of opprillion under his brother. He tent for Anfelm who was then at Layou, inviting him to register and take profiofion of his digities. Anfelm returned; but quarrels when Henry propieded him to do the frame homage win the to him which he had done to his brother, the king next primates. with an absolute refuge. During his sole, Anfelm had fulfilled at the council of Bars; where, builds fixing the controversy between the Gods and Latin churches concerning the prestiffine of the Holy Ghost, the right of election to church-preferences was declared to be- long to the clergy alone, and spiritual centers were demonized against all celebrates the civil damage to layman for their few or berceries, and on all laymen who exacted it. The rise of homage + by the feudal f See Feadalc cultures was, that the vafial found throw benefit on _Fears_, his knees, put his joined hands between those of his fuuperior, and fhoud in that pofture fewer realty to him. But the conodt declared it seems, that pure bands which entered God, and offer him go for the falsvation of mankind, should be put, after this humility manner, between profirand lands, which be- files being injured to rapne and bloodied, were em- played day and night in impure purposes and oblicene consults. To this decree therefor Anfelm appeals, and cheated, that for for dening homage for his spiritual dignity, he would not even communicate with any eclectifiable who paid that fumillion, or who accepted of insufficient from Jayan. Henry did not infilt and therefore defined that the controversy might be fondend, and that melfengers might be faut to Rome to accommodate matters with the Pope, and to obtain his confirmation of the flaws and customs of England.

Heavy, now took another flep which femed capable of confirming his claims to the crown without any danger of a rival. The English remembered with regret their

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England. conqueſt. William earl of Poictiers and duke of Guienne had reſolved upon an expedition to the holy land; and, for this purpoſe, had put himſelf at the head of a vaſt multitude, conſiſting, according to ſome hiſtorians, of 60,000 horſe, and a much greater number of foot. Like Robert of Normandy, he offered to mortgage his dominions for money ſufficient to conduct this multitude into Aſia. The king accepted his offer; and had prepared a fleet and army to take poſſeſſion of theſe dominions, when an unfortunate accident put an end to his projects and his life. He was engaged in hunting, the ſole amuſement, and indeed the principal occupation, of princes in thoſe rude times. Walter Tyrrel, a French gentleman remarkable for his ſkill in archery, attended him in this recreation, of which

97 Death of the king. the new foreſt was the ſcene. William had diſmounted after a chace; and Tyrrel, impatient to ſhew his dexterity, let fly an arrow at a ſtag which ſuddenly ſtarted before him. The arrow glanced from a tree, and ſtruck the king to the heart. He inſtantly fell down dead; and Tyrrel, terrified at the accident, clapt ſpurs to his horſe, haſtened to the ſea-ſhore, and embarked for France, where he joined the cruſade that was ſetting out from that country. This happened on the 2d of Auguſt 1100, after the king had reigned 13 years, and lived about 40. His body was found in the woods by the country-people, and buried without ceremony at Wincheſter.

After the death of William, the crown of right devolved to Robert his eldeſt brother; for William had no legitimate children. But what Robert had formerly loſt by his indolence, he was again deprived of by his abſence at the holy war. Prince Henry was in the

98 Prince Henry uſurps the crown. foreſt with William Rufus at the time the latter was killed. He no ſooner heard the important news, than he hurried to Wincheſter, and ſecured the royal treaſure. William de Breteuil, keeper of the treaſure, arrived almoſt the ſame inſtant, and oppoſed his pretenſions; telling him, that the treaſure belonged to his elder brother, who was now his ſovereign, and for whom he was determined to keep it. But Henry, drawing his ſword, threatened him with inſtant death if he dared to diſobey him; and others of the late king's retinue, who came every moment to Wincheſter, joining the prince's party, he was obliged to deſiſt. Henry loſt no time in fully accompliſhing his purpoſe. In leſs than three days he got himſelf crowned king of England, by Maurice biſhop of London. Preſent poſſeſſion ſupplied every deficiency of title; and no one dared to appear in defence of the abſent prince.

99 His charter in favour of the people. The beginning of king Henry's reign promiſed to be favourable to the Engliſh liberty; owing chiefly to his fear of his brother. To conciliate the affections of his ſubjects, he paſſed a charter calculated to remove many of the grievous oppreſſions which had been complained of during the reigns of his father and brother. He promiſed, that, at the death of any abbot or biſhop, he never would ſeize the revenues of the ſee or abbey during the vacancy, but would leave the whole to be reaped by the ſucceſſor; and that he would never let to farm any eccleſiaſtical benefice, or diſpoſe of it for money. To the laity he promiſed, that, upon the death of any earl, baron, or military tenant, his heir ſhould be admitted to the poſſeſſion of his eſtate, on paying a juſt and lawful relief; without being expoſed to thoſe enormous exactions which had been formerly required. He remitted the wardſhip of minors; and allowed guardians to be appointed, who ſhould be anſwerable for the truſt. He promiſed not to diſpoſe of any heireſs in marriage but by advice of all the barons; and if any baron intended to give his daughter, ſiſter, niece, or kinſwoman, in marriage, it ſhould only be neceſſary for him to conſult the king, who promiſed to take no money for his conſent, nor ever to refuſe permiſſion, unleſs the perſon to whom it was propoſed to marry her ſhould happen to be his enemy. He granted his barons and military tenants the power of bequeathing by will their money or perſonal eſtates; and if they neglected to make a will, he promiſed that their heirs ſhould ſucceed to them. He renounced the right of impoſing moneyage, and of levying taxes at pleaſure, on the farms which the barons kept in their own hands. He made ſome general profeſſions of moderating fines; he offered a pardon for all offences; and remitted all debts due to the crown. He alſo required, that the vaſſals of the barons ſhould enjoy the ſame privileges which he granted to his own barons; and he promiſed a general confirmation and obſervance of the *laws of king Edward* *. To give greater authenticity to theſe conceſſions, a copy of the charter was lodged in ſome abbey of each county. England. * See Feodal Syſtem.

King Henry, farther to increaſe his popularity, degraded and committed to priſon Ralph Flambard biſhop of Durham, who had been the chief inſtrument of oppreſſion under his brother. He ſent for Anſelm who was then at Lyons, inviting him to return and take poſſeſſion of his dignities. Anſelm returned; but

100 Quarrels with the primate. when Henry propoſed to him to do the ſame homage to him which he had done to his brother, the king met with an abſolute refuſal. During his exile, Anſelm had aſſiſted at the council of Bari; where, beſides fixing the controverſy between the Greek and Latin churches concerning the proceſſion of the Holy Ghoſt, the right of election to church-preferments was declared to belong to the clergy alone, and ſpiritual cenſures were denounced againſt all eccleſiaſtics who did homage to laymen for their fees or benefices, and on all laymen who exacted it. The rite of homage † by the feudal cuſtoms was, that the vaſſal ſhould throw himſelf on his knees, put his joined hands between thoſe of his ſuperior, and ſhould in that poſture ſwear fealty to him. But the council declared it execrable, that pure hands, which could create God, and offer him up for the ſalvation of mankind, ſhould be put, after this humiliating manner, between profane hands, which, beſides being inured to rapine and bloodſhed, were employed day and night in impure purpoſes and obſcene contacts. To this decree therefore Anſelm appealed; and declared, that ſo far from doing homage for his ſpiritual dignity, he would not even communicate with any eccleſiaſtic who paid that ſubmiſſion, or who accepted of inveſtitures from laymen. Henry durſt not inſiſt; and therefore deſired that the controverſy might be ſuſpended, and that meſſengers might be ſent to Rome to accommodate matters with the Pope, and to obtain his confirmation of the laws and cuſtoms of England. † See Feodal Tenure.

Henry now took another ſtep which ſeemed capable of confirming his claims to the crown without any danger of a rival. The Engliſh remembered with regret their

Figure 1: *
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